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The Gazette of the Democratic Socialist Republic of Sri Lanka
EXTRAORDINARY

අංක 1976/21 - 2016 ජූලි මස 20 වැනි බදාදා - 2016.07.20
No.1976/21 - WEDNESDAY JULY 20, 2016

(Published by Authority)

PART IV (A) — PROVINCIAL COUNCILS

Provincial Councils Notifications

WESTERN PROVINCE PROVINCIAL COUNCIL

Notice made under Section 2 of the Local Government Authorities (Standard By-Laws) Act, No. 6 of 1952 read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989

THE draft amended by-laws made by the Chief Minister and the Minister in charge of the subject of Local Government of the Western Province in pursuance of Section 2 of the Local Government Authorities (Standard by-laws) Act, No. 6 of 1952 read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989 referred to hereunder shall hereby be published in accordance with the provisions further stated in such Section.

It is hereby notified that the Pradeshiya Sabhas have been devolved with power under Section 126 of the Pradeshiya Sabha Act, No. 15 of 1987 read with Section 122 of the same Act to made by-laws that contain the provisions included in the said draft amended by-laws and such draft amended by-laws, subsequent to adoption by the Provincial Council of the Western Province in pursuance of the provisions of Sub section 3 of the aforesaid Section 2 of the Local Government Authorities (Standard By-laws) Act, No. 6 of 1952 read with Section 2 of the Provincial Councils (Consequential Provisions) Act, No. 12 of 1989, will receive the authority for acceptance by the Pradeshiya Sabhas of the Western Province upon publishing a *Gazette* Notification to the effect of such adoption.

ISURA DEVAPRIYA,
Chief Minister and Minister of Finance and Planning, Engineering
Services, Law and Order, Local Government and Provincial
Administration, Economic Development, Power and Energy,
Environmental Affairs, Water Supply and Drainage and
Tourism of the Western Province.

At the Chief Ministry of the Western Province,
Savasthri House,
Colombo 07,
29th June 2016.



By-Law (Amended) relating to Regularization of Decorations

1. This by-law is enacted for the purpose of amending the by-law relating to regularization of decorations in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Regularization of Decorations for Services in the area of authority of the Pradeshiya Sabha.

3. Section 11 of the by-law relating to regularization of decorations in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in Sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Sale of Fish

1. This by-law is enacted for the purpose of amending the by-law relating to Sale of Fish for Services in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Sale of Fish for Services in the area of authority of the Pradeshiya Sabha.

3. Section 19 of the by-law relating to sale of fish in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Hotels and Lodges

1. This by-law is enacted for the purpose of amending the by-law relating to Hotels and Lodges in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Hotels and Lodges in the area of authority of the Pradeshiya Sabha.

3. Section 25 of the by-law relating to Hotels and Lodges in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Sale of Meat

1. This by-law is enacted for the purpose of amending the by-law relating to Sale of Meat in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Sale of Meat in the area of authority of the Pradeshiya Sabha.

3. Section 22 of the by-law relating to Sale of Meat in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Offensive Trades, Dangerous Trades and Offensive and Dangerous Trades

1. This by-law is enacted for the purpose of amending the by-law relating to Offensive Trades, Dangerous Trades and Offensive and Dangerous Trades in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Offensive Trades, Dangerous Trades and Offensive and Dangerous Trades in the area of authority of the Pradeshiya Sabha.

3. Section 21 of the by-law relating to Offensive Trades, Dangerous Trades and Offensive and Dangerous Trades in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Funeral Service Providing Centers

1. This by-law is enacted for the purpose of amending the by-law relating to Funeral Service Providing Centers in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Funeral Service Providing Centers in the area of authority of the Pradeshiya Sabha.

3. Section 21 of the by-law relating to Funeral Service Providing Centers in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Playgrounds

1. This by-law is enacted for the purpose of amending the by-law relating to Palygrounds in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Playgrounds in the area of authority of the Pradeshiya Sabha.

3. Section 15 of the by-law relating to Playgrounds in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Itinerary Trade

1. This by-law is enacted for the purpose of amending the by-law relating to Itinerary Trade in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Itinerary Trade in the area of authority of the Pradeshiya Sabha.

3. Section 17 of the by-law relating to Itinerary Trade in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Vehicle Control on Roads in the Areas of Authority in the Pradeshiya Sabha

1. This by-law is enacted for the purpose of amending the by-law relating to Weight and Speed Limits of Roads in the are of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Weight and Speed Limits of Roads in the area of authority of the Pradeshiya Sabha.

3. Section 9 of the by-law relating to Weight and Speed Limits of Roads in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Eating Houses

1. This by-law is enacted for the purpose of amending the by-law relating to Eating Houses in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Eating Houses in the area of authority of the Pradeshiya Sabha.

3. The terms “in the area of authority of the Urban Council” in Section 3 of this by-law relating to Eating Houses is amended to read as ”in the area of authority of the Pradeshiya Sabha.”

4. Section 17 of the by-law relating to Eating Houses in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Parking of Three Wheelers

1. This by-law is enacted for the purpose of amending the by-law relating to Parking of Three Wheelers in the area of authority of the Pradeshiya Sabha.
2. This by-law shall be cited as the By-Law (Amended) relating to Parking of Three Wheelers in the area of authority of the Pradeshiya Sabha.
3. Section 25(1) of the by-law relating to Parking of Three Wheelers in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Bakeries

1. This by-law is enacted for the purpose of amending the by-law relating to Bakeries in the area of authority of the Pradeshiya Sabha.
2. This by-law shall be cited as the By-Law (Amended) relating to Bakeries in the area of authority of the Pradeshiya Sabha.
3. Section 29 of the by-law relating to Bakeries in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Advertisements

1. This by-law is enacted for the purpose of amending the by-law relating to Advertisements Displayed in the area of authority of the Pradeshiya Sabha.
2. This by-law shall be cited as the By-Law (Amended) relating to Advertisements in the area of authority of the Pradeshiya Sabha.
3. Section 18 of the by-law relating to Advertisements in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Crematoriums

1. This by-law is enacted for the purpose of amending the by-law relating to Crematoriums in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Crematoriums in the area of authority of the Pradeshiya Sabha.

3. Section 14 of the by-law relating to Crematoriums in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”

By-Law (Amended) relating to Levying of Charges for Services

1. This by-law is enacted for the purpose of amending the by-law relating to Levying of Charges for Services in the area of authority of the Pradeshiya Sabha.

2. This by-law shall be cited as the By-Law (Amended) relating to Levying of Charges for Services in the area of authority of the Pradeshiya Sabha.

3. Section 8 of the by-law relating to Levying of Charges for Services in the area of authority of the Pradeshiya Sabha is hereby repealed and amended with the substitution therefore of the Section stated below.

“Breach or violation of any provision of this by-law is an offence and the maximum fine imposable when a person has been found to be an offender for such offence by any court of law with appropriate jurisdiction and the maximum of the additional fine imposable for each day of such offence on being further found guilty of the continuation of such breach or violation subsequent to handing over of a written notice by the Chairman or other authorized officer drawing the attention of such offender of his continued indulgence in such breach or violence shall be the maximum fine and the maximum of the additional fine respectively as stipulated in sub section (2) of Section 122 of the Pradeshiya Sabha Act, No. 15 of 1987.”